

HOUSE No. 953**The Commonwealth of Massachusetts**

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to forest protection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/15/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/21/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/12/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/12/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>6/9/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/30/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>11/14/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>1/6/2026</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>6/27/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>9/7/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/14/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>12/5/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/25/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/20/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/28/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/18/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/5/2026</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and</i>	<i>9/11/2025</i>

	<i>Hampshire</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>6/30/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/21/2026</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>8/19/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/22/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>11/20/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/24/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>7/1/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>6/25/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>8/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>

HOUSE No. 953

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 953) of Carmine Lawrence Gentile and others relative to forest protection. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to forest protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 132 of the general laws is hereby amended by inserting the
2 following-

3 The secretary of the Executive Office of Energy and Environmental Affairs shall create a
4 “Reserves Scientific Advisory Council,” hereinafter referred to as the Council, to oversee the
5 designation and management of the Reserves, and to suggest additional acquisitions to enhance
6 the ecological value of the Reserves program as a whole. The Council shall consist of eight
7 members, including: one member from the Harvard Forest or designee, who is an expert in
8 forestry and forest management; one member from the Highstead Foundation or designee, who is
9 an expert in forest ecology; one member from the Center for Biological Diversity or designee,
10 who is an expert in nongame wildlife and endangered species; one member from the Native Plant
11 Trust or designee, who is an expert in the field of plant ecology; one member from the Woodwell
12 Climate Research Center or designee, who is an expert in climate; one member from the

University of Massachusetts who has technical training and experience in the field of soil or watershed science; one member from Friends of the Middlesex Fells or designee; one member from Friends of the Mohawk Trail State Forest or designee.

The members of the council shall be reimbursed for their necessary expenses incurred in the performance of their duties. Each member shall be appointed for a term of three years, except that for the initial term, three members shall be appointed for one year, three members shall be appointed for two years and two members shall be appointed for three years. Any person appointed to fill a vacancy shall serve for the unexpired term. Any member shall be eligible for reappointment.

The council's duties shall include overseeing the policies and rules and regulations concerning Reserves, with consultation of additional qualified scientific advisors requested by the Council, to ensure that Reserves are maintained in their natural state with only minimal human intervention, and then only when proven necessary to preserve ecological integrity or protect public health, safety and welfare, consulting with the department regarding the nomination of potential Reserves, and advising the department on budgetary matters related to such Reserves. The council shall submit a biennial report to the governor on or before May first of such year, describing the condition of each Reserve, outlining any actions taken by the council since the last report, and making any recommendations related to the Reserve program which the council deems necessary.

The department shall hold a public hearing in accordance with the provisions of Chapter 30A, for any substantial management or other activities in designated Reserves.

SECTION 2. Chapter 21 of the General Laws is hereby by amended by replacing Section 2F with the following-

Management guidelines for public and private forest lands

Section 2F. The director of state parks and recreation shall work in cooperation with the director of the division of fisheries and wildlife within the department of fish and game to establish coordinated management guidelines for public forest lands within the departments of conservation and recreation and for sustainable forestry practices on private forest lands. Said guidelines for public forest lands shall include agreements on equipment, personnel transfers, operational costs, and assignment of specific management responsibilities.

The commissioner of conservation and recreation shall submit management plans to the stewardship council for the council's adoption with respect to all reservations, parks and forests under the management of the department, regardless of whether such reservations, parks and forests lie within the urban parks district or outside the urban parks district. Said management plans shall include guidelines for the operation and land stewardship or the aforementioned reservations, parks and forests, shall provide for the protection and stewardship of natural and cultural resources and shall ensure consistency between recreation and resource protection. The commissioner shall seek and consider public input in the development of management plans, and shall make draft plans available for a public review and comment period through notice in the Environmental Monitor. Within thirty days of the adoption of such management plans, as amended from time to time, the commissioner shall file a copy of such plans as adopted by the council with the with the state secretary and the joint committee on natural resources and

agriculture of the general court. All said management plans shall be subject to section 2B of Chapter 132A and section 1 of Chapter 131.

The commissioner of conservation and recreation shall be responsible for implementing said management plans, with due regard for the above requirement.

SECTION 3. Chapter 92 of the General Laws is hereby amended by replacing Section 33 with the following-

Section 33. The division of state parks and recreation, hereinafter referred to as the division, may maintain and make available to the inhabitants of Arlington, Belmont, Boston, Braintree, Brookline, Cambridge, Canton, Chelsea, Dedham, Dover, Everett, Hingham, Hull, Lynn, Malden, Medford, Melrose, Milton, Nahant, Needham, Newton, Quincy, Revere, Saugus, Somerville, Stoneham, Swampscott, Wakefield, Waltham, Watertown, Wellesley, Weston, Westwood, Weymouth, Winchester, and Winthrop, which shall constitute the urban parks district, open spaces for exercise and recreation, in this chapter designated as Parks or Reserves subject to Chapter 132A Section 2B and, for the purposes set forth in this section, the powers of the division shall extend to, and be exercised in, said district.

The division may preserve, beautify and care for such public Parks or Reserves, and also, in its discretion and upon such terms as it may approve, such other open spaces within said districts as may be entrusted, given or devised to the Commonwealth for the general purposes of this section of for any one or more of such purposes as the donor may designate.

The division may, for the purpose of making the rivers and ponds within said district more available as open spaces for recreation and exercise, regulate the use of certain spaces along or near said rivers and ponds, and care for and maintain spaces so regulated, and plant,

care for, maintain or remove trees, shrubs, and growth of any kind within said regulated spaces,
subject to section 1 of Chapter 131.

The commissioner of conservation and recreation, hereinafter referred to as the
commissioner, may enter into and issue agreements, licenses and permits for recreational and
other uses which he deems compatible and consistent with this section and Article XCVII of the
amendments to the Constitution, provided, however, that such agreements, licenses and permits
shall be for periods not exceeding 10 years, and shall be in writing.

This section shall not limit existing rights of any town in relation to water supply
purposes or in any way obstruct its taking advantage of such rights.

SECTION 4. Chapter 92A1/2 of the General Laws is hereby amended by replacing
Section 20 with the following-

The division shall not contract for services exclusive of consultants performing only
those services for the division which regular employees of the division are unable to perform, to
accomplish any of its duties nor shall it enter into any interagency agreement for such purpose.
Only officers and employees of the division shall perform its duties. All contracts and
consultants shall be subject to section 2B of chapter 132A and section 1 of Chapter 131.

SECTION 5. Chapter 132 of the General Laws is hereby amended by replacing Section 2
with the following-

Bequests and gifts; Forest Trust

Section 2. The commissioner of environmental management, in this chapter called the
commissioner, with the approval of the governor and council, may accept on behalf of the

commonwealth bequests or gifts to be used for the purpose of advancing the interest of the commonwealth in forest preservation, under the direction of the governor and council, or for the laying out, construction or maintenance of state trails or paths, in such manner as to carry out the terms of the bequests or gifts. Said trust properties shall be known as the Forest Trust and shall be used and expended under the direction of the commissioner and subject to his orders. Subject to the terms of such grant, gift, devise, or bequest, the commissioner may expend such funds without further appropriation whether principal or income. The commissioner may, subject to the approval of the deed and title by the attorney general, accept on behalf of the commonwealth gifts of land to be held and managed for experiment and illustration in forest preservation, subject to section 2B of Chapter 132A, and in accordance with such other rules and regulations as the commissioner, with the approval of the governor and council, may prescribe. A donor of such land may reserve the right to buy back the land in accordance with such terms and conditions as may be agreed upon by and between such donor and the commissioner; but in the absence of such reservation in his deed of gift he shall not have such right.

SECTION 6. Chapter 132 of the General Laws is hereby amended by replacing Section 34A with the following-

At the request of the commissioner, and after public hearing, the department of public utilities if a location for electric light to serve an existing facility or for public safety or the department of telecommunications and cable if a location for telephone or telegraph lines to serve an existing facility or for public safety may by order alter or revoke and such location whenever in its opinion the public interest or the rights of the commonwealth so require; provided, that before so doing notice of said hearing shall be given to the grantee of the location and all persons interested, and provided, further, that the grantee or any person interested in such

121 order may appeal there from to the governor and council within fourteen days after the filing of a
122 copy of such order as provided in the following paragraph.

123 The commissioner, within fourteen days after granting any such location, shall file a copy
124 of the grant of the same, together with a copy of the order of the department of public utilities or
125 the department of telecommunication and cable that the location is required by public necessity
126 or convenience, in the office of the clerk of the town where the location is granted, and the
127 department of public utilities or the department of telecommunications and cable shall file in the
128 office of said clerk any order altering or revoking such location, and the clerk of such town shall
129 receive and record the same.

130 The lands of the commonwealth now under the care, custody and control of the
131 commissioner or hereafter acquired, and outside the urban park district, shall be designated as
132 Parks or Reserves and shall not be leased, sold or exchanged, or be taken by any corporation,
133 public or private, nor shall the timber thereon be sold, removed or destroyed, except as provided
134 for in section 1 of Chapter 131.

135 The commissioner may not approve or provide for the installation of new commercial
136 solar arrays, wind electricity generating systems, gas pipelines, commercial communications
137 sites, commercial transmissions lines, cellular communications towers, or other such industrial
138 infrastructure; provided that new solar installations will be allowed if they have the primary
139 purpose of supplying electricity to an existing or approved public facility and the added
140 environmental impacts would not be significant, and the installation of new communication
141 hardware or replacement of existing communications hardware on existing fire towers or
142 communications sites will be allowed if they would not have significant environmental impacts.

SECTION 7. Chapter 132A of the General Laws is hereby amended by replacing Section 1F with the following-

The bureau of forestry shall, under the supervision of the director, with the approval of the commissioner perform such duties as respects the preservation of forest or wooded areas under the control of the department; provided that such lands shall be designated as Parks or Reserves and shall not be leased, sold, or exchanged, or be taken by any corporation, public or private, nor shall the timber thereon be sold, removed, or destroyed, except as provided for in section 1 of Chapter 131. It shall be responsible for such other duties as are now vested in the division of forestry by the general laws or any special laws and shall be responsible for shade tree management, arboricultural service, and insect suppression of public nuisances as defined in section eleven of chapter one hundred and thirty two, subject to the approval of the director and, notwithstanding the provisions of any general or special law to the contrary, the bureau may require all tree spraying or other treatment performed by other departments, agencies, or political subdivisions to be carried out under its direction; provided that the spraying of pesticides or herbicides shall not be permitted unless there is a clear threat to public health and safety, as determined by the Massachusetts Department of Public Health. The bureau may promulgate rules and regulations to carry out its duties and powers. It shall assume the responsibilities of section one A of chapter one hundred and thirty two and shall be responsible for such other duties as are not otherwise vested in the division of forestry; provided, however, that all personal of the forest, fire, shade tree and pest control units in their respective collective bargaining units at the time of this consolidation to the bureau of forestry shall remain in their respective collective bargaining units.

SECTION 8. Chapter 132A of the General Laws is hereby amended by replacing Section 2B with the following-

It is hereby declared to be the policy of the commonwealth that all lands of the commonwealth now under the care, custody, and control of the commissioner or hereafter acquired shall in so far as practicable be preserved in their natural state and that no commercial activities except those essential to the quiet enjoyment of the facilities by the people shall be permitted. All such lands shall be designated as Parks or Reserves and shall not be leased, sold, or exchanged, or be taken by any corporation, public or private, nor shall the timber thereon be sold, removed or destroyed, except as provided for in section 1 of Chapter 131.

SECTION 9. Chapter 132 of the General Laws is hereby amended by replacing Section 40 with the following-

Section 40. It is hereby declared that the public welfare requires the rehabilitation, maintenance, and protection of forest lands for the purpose of conserving water, preventing floods and soil erosion, improving the conditions for wildlife and recreation, protecting and improving air and water quality, and optimizing carbon sequestration.

Therefore, it is hereby declared to be the policy of the commonwealth that all lands devoted to forest growth shall be kept in such condition as shall not jeopardize the public interests, and that the policy of the commonwealth shall further be one of cooperation with the landowners and other agencies interested in forestry practices for the proper and profitable management of all forest lands in the interest of the owner, the public and the users of forest products, while ensuring the highest standards of sustainable forestry and native biodiversity protection.

SECTION 10. Chapter 132 of the General Laws is hereby amended by deleting in
Section 51 the following-

(2) promoting the development and increased use and affordability of biomass and related
renewable energy resources demonstrating the role of biomass as a sustainable, renewable
energy source addressing the current concerns of air quality, greenhouse emissions, and forest
management practices, establishing applied research and development activities that examine
and promote best available control technology serving as a depository of information regarding
biomass and related renewable energy resources, providing consulting and technology transfer
assistance to the public sector in an effort to help public institutions replicate best available
practices in incorporating renewable energy strategies into existing and future construction and
providing a forum for public education and training regarding renewable energy and related
application;

SECTION 12. Chapter 131 of the General Laws is hereby amended in Section 1 by
inserting the following-

“Park”, an area which conserves unique natural and cultural values while focusing on the
provision of recreation or facilities maintenance. Parks may have existing modified environments
where use is intensively managed. The timber and other natural resources in Parks shall not be
sold, removed, or destroyed. Vegetation management shall be allowed to ensure public health
and safety; support recreational use; provide fire protection and prevention; remove invasive
species or pests; maintain or restore recreation sites; restore or protect natural vegetation
communities; maintain or stabilize soils, roads and trails, scenic vistas, agricultural fields, lawns,
turfs, and greens; or meet other regulatory requirements. The application of pesticides or

209 herbicides shall not be permitted unless there is a clear threat to public health and safety, as
210 determined by the Massachusetts Department of Public Health.

211 "Reserve", an area permanently protected to allow natural processes to prevail with
212 minimal human interference, which conserves intact ecosystems with the goals of ensuring the
213 recovery and protection of mature and old growth forest ecosystems, maintenance of connected
214 habitat blocks and species movement corridors to promote ecosystem resilience, conservation of
215 habitat for threatened and endangered species, long-term carbon sequestration and storage,
216 nutrient cycling and soil formation, preservation of reference sites for scientific research,
217 comparative studies, and long-term monitoring, and opportunities for wildland recreation. No
218 timber or other natural resources shall be sold, removed, or destroyed, provided that active
219 management shall be allowed in circumstances where it is proven that such action is necessary to
220 control erosion and stabilize soils; for invasive species management, to maintain existing
221 agricultural fields, vistas, and hiking trails; or for public health, safety and welfare. Creation of
222 new fields, vistas, and wildlife openings is prohibited. The application of pesticides or herbicides
223 shall not be permitted unless there is a clear threat to public health and safety, as determined by
224 the Massachusetts Department of Public Health.